

# HOUSE . . . . . No. 2813

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Paul J. Donato***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the fifth member of the public employee retirement systems.

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PETITION OF:

| NAME:                 | DISTRICT/ADDRESS:     | DATE ADDED:      |
|-----------------------|-----------------------|------------------|
| <i>Paul J. Donato</i> | <i>35th Middlesex</i> | <i>1/16/2025</i> |

# HOUSE . . . . . No. 2813

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By Representative Donato of Medford, a petition (accompanied by bill, House, No. 2813) of Paul J. Donato relative to filling certain vacancies on retirement boards. Public Service.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to the fifth member of the public employee retirement systems.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1: Section 20 of sub-section (4) (b) of Chapter 32 is hereby amended by  
2   deleting the third sentence in lines 205-209 of the 2014 Official Edition and inserting the  
3   following: "If the fifth member is not chosen by the other four members within ninety days after  
4   the expiration or resignation of the term of the fifth member, said member shall be appointed in a  
5   city by the mayor, subject to confirmation by the city council, or in a town by the board of  
6   selectmen.